

**RE: Subject: WITHOUT PREJUDICE SAVE
AS TO COSTS — WC/2024/227 Shepherd
— material development**

From: Renee Matheson

Renee.Matheson@oir.qld.gov.au

To: Cory Shepherd coryshepherd1@hotmail.com

Sent: Friday 14 August at 13:29

Dear Mr Shepherd,

I refer to your email dated 31 July 2026 and note its contents.

The Regulator wishes to confirm that its position remains to defend the appeal as outlined in our Statement of Facts and Contentions.

As mentioned previously, please note that should our position change at any point, we will advise you as soon as possible.

Kind regards,

Renee Matheson

Senior Appeals Officer

Workers' Compensation Regulatory Services

Office of Industrial Relations

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DELIVERING
FOR QUEENSLAND



Queensland
Government

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Friday, 31 July 2026 10:47 AM

To: Renee Matheson <Renee.Matheson@oir.qld.gov.au>

Subject: CM: Subject: WITHOUT PREJUDICE SAVE AS TO

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Dear Ms Matheson,

I write to inform the Respondent of a development
in circumstances relevant to this appeal, and to
invite reconsideration of its position.

This letter does not revive my offer of 1 July 2026,
which lapsed on 22 July 2026. Any renewed offer
will reflect the position as it then stands. The
matters set out in that offer are not repeated here.

The development

On 2 July 2026 I was advised by my line manager
that I could not return to work until a completed
Employee Capability Checklist was provided, and
that shifts not worked would be processed as sick
leave. I obtained and provided the completed
checklist on 3 July 2026. It certifies me fit to work
with identified restrictions, and Metro South Health
has acknowledged in writing that I have "been
certified fit to return to work effective from 3 July
2026."

I have nonetheless been directed not to attend
work since that date. That direction has now
continued for four weeks. I have received no wages
during that period, my accrued leave has been
debited, and I have met the cost of the medical
evidence the Health Service required. At my
direction earlier this year, my income protection
benefits were reduced to partial payments and
subsequently stopped altogether, as I had returned
to work. No benefit is payable to me. I therefore
have no income from any source.

On 30 July 2026 the Health Service advised that the further medical request said to be the reason I cannot return is "progressing for delegate approval," and that it is "unable to guarantee" when it will be available. There is accordingly no date by which the position is expected to change.

Why I raise it with the Respondent

In correspondence of 15 July 2026, Metro South Health stated that the obligation to provide rehabilitation and suitable duties under the Workers' Compensation and Rehabilitation Act 2003 (Qld) applies to workers with accepted workers' compensation claims, and does not extend to me.

The consequence is that the decision under appeal is producing continuing detriment. That detriment is neither historical nor incidental to the appeal: on the employer's own stated reasoning, it is the reason I am without rehabilitation, without suitable duties and without income. It accrues while the appeal remains, it presently has no end date, and it will continue for as long as the rejection stands.

I would add that the Health Service has, to date, declined to identify any power for the direction that I do not attend work, any duty of my position that I am unable to perform, or any risk said to arise from my performing it.

What I ask

I note the Respondent's advice of 16 July 2026 that it would advise me as soon as possible should its position change. I ask that the Respondent reconsider its position considering the above.

I remain willing to resolve this matter and would welcome the opportunity to confer at any time.

Kind regards,

Cory Lea Shepherd

Appellant (Self-Represented)

0417 400 227 · coryshepherd1@hotmail.com

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